

SHORT-TERM INDEPENDENT CONTRACTOR AGREEMENT

This agreement by and between Jhpiego Corporation (hereinafter referred to as Jhpiego), having its principal place of business at 1615 Thames Street, Baltimore MD 21231 with an office in Myanmar **No. 118/A, Kokkai Yeik Tha Street, Bahan Township, Yangon**, and **Zan Zan Tin Aye**, having residence address at **No.17, Nwe Ni Street, Ahlone Yangon, Myanmar**. (Hereinafter referred to as Independent Contractor).

RECITALS

I. Jhpiego desires to obtain services from the Independent Contractor as more particularly described herein (hereinafter referred to as the Services).

II. The Independent Contractor is in the business of providing such Services and has agreed to provide the Services on the terms and conditions set forth in this Agreement.

Now, therefore, in consideration of the faithful performance of the obligations set forth herein and other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, Jhpiego and the Independent Contractor hereby agree as follows:

1. Scope of Work. The Independent Contractor will consult with and advise Jhpiego on matters and/or perform services relating to Attachment A — Scope of Work.

2. Place of Work. The Independent Contractor shall perform the work described hereunder from a place of business located at Yangon Myanmar or at a place to be designated by Jhpiego designated location.

3. Time Devoted to Work. In the performance of the Services, the amount of time devoted by the Independent Contractor on any given day will be entirely within the Independent Contractor's control, and Jhpiego will rely on the Independent Contractor to devote such number of hours as are necessary to fulfill the requirements of this Agreement.

4. Estimated Cost and Payment. Jhpiego will pay the Independent Contractor at the fixed rate of **278,000 Myanmar Kyats** per day for a maximum number of days not-to-exceed **70 days**, and the total consultancy fees should not be exceeding **19,460,000 Myanmar Kyats**. The contract is for **7 months** and the payment for services will be paid by Jhpiego upon presentation of attendant sheet, invoice and completion of services rendered. Invoice shall include the total number of days worked and a brief description of the services provided for each day worked. Reimbursement of other previously authorized expenses under this Agreement will be paid to the Independent Contractor upon itemization of the Independent Contractor's invoice. The Consultant shall be responsible for the payment of all income, self-employment or other taxes and shall not entitled to any benefit, payment, compensation or entitlement, except as expressly provided in this contract.

5. Term. The term of this Agreement shall commence on **19 November 2025 to 30 June 2026** unless extended by mutual written agreement of the parties or until all work in accordance with this Agreement have been completed. Jhpiego may terminate at any time all or any part of the services called for by this Agreement for its convenience. Upon the expiration of the term hereof or earlier termination of this Agreement, Independent Contractor shall deliver to Jhpiego all completed work to date and any records or other property belonging to Jhpiego.

6. Termination. It is agreed and understood that Jhpiego or the Independent Contractor may terminate this agreement at either party's sole discretion by giving advance notice in writing of not less than 15 days.

7. Jhpiego's Right to Inspect. In the performance of the Services, Independent Contractor has the authority to control and direct the performance of the details of the work, Jhpiego being interested only in the results obtained. However, the work contemplated herein must meet Jhpiego's standards and approval and shall be subject to Jhpiego's general right of inspection and supervision to secure the satisfactory completion thereof. Independent Contractor agrees to comply with all federal, state and local laws, rules and regulations that are now or hereafter

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applicable to the Consultant/Independent Contractor or Consultant/Independent Contractor's business. Jhpiego will designate a representative who authorized to act for Jhpiego in all matters related to Consultant/Independent Contractor's performance of the Services.

8. Confidential Information and Copyright. All information and reports disclosed to the Independent Contractor by Jhpiego or Jhpiego's sponsor and all information and reports developed by the Independent Contractor for Jhpiego or the Sponsor during performance of the Services are confidential and shall revealed only to Jhpiego. Jhpiego shall deemed the copyright owner of all such information and reports developed by the Consultant/Independent Contractor under this Agreement. Please also find **Attachment B** for completion and signature.

9. General. This Agreement shall interpreted in accordance with the laws as applicable in Myanmar. This Agreement constitutes the entire agreement of the parties with respect to the matters addressed herein and no modifications of this Agreement shall be enforceable unless in writing signed by both Jhpiego and Independent Contractor. All references to the masculine gender herein shall be applicable equally to the feminine and neuter genders and all references in the singular shall apply in the plural.

JHPIEGO CORPORATION

INDEPENDENT CONTRACTOR

Signature Kyaw Hlaing

Name: Dr. Kyaw Hlaing

Title: Country Program Manager

Address No. 118/A, Kokkai Yeik Tha Street,
Bahan Township, Yangon

Date: 18 November 2025

Signature Zan

Name Zan Zan Tin Aye

Consultant

Address No17, Nwe Ni Street, Ahlone Yangon,
Myanmar

Date: 18 November 2025

Expression of Interest (EOI)
CONSULTANT Terms of Reference

Background

Maternal and newborn care in Myanmar faces significant challenges, including a high maternal mortality ratio and barriers to accessing quality healthcare, particularly in remote and conflict-affected areas. The "High-impact Maternal Newborn and Child Health (HI-MNCH) project" aims to address these issues by strengthening the health system and improving the delivery of essential maternal, newborn, and child health services. As part of this initiative, the development of a digitalized Labor Care Guide (LCG) is a key strategic intervention. The LCG, based on the latest WHO recommendations, will be designed to enhance the quality of care during labor and childbirth by providing healthcare providers with a user-friendly, evidence-based tool to monitor progress, identify complications, and promote woman-centered care, ultimately contributing to better health outcomes for mothers and babies.

- Report to: Senior Technical and Program Manager, HI-MNCH Project, Myanmar
- Location: Yangon
- Service: Consultant

Scope of work

Objective: The primary objective of this consultancy is to develop an application for Labour Care Guide under HI-MNCH.

Term: This consultancy is effective from November 19, 2025 and continues during the proposed working days, with the possibility of extending the timeline for one additional month for the finalization of the report.

Estimated Working Days

The consultancy will require maximum 65 – 70 working days within 7-month period (2025 Nov – 2026 Jun), with additional days allocated for Additional modification, System expansion and Mobile Application Conversion (Android & iOS) according to additional requirement of the HI-MNCH Project.

Responsibilities

Under the guidance of Senior Technical & Program Manager, in coordination with Deputy Chief of Party and Chief of Party, the Consultant will undertake the following responsibilities of application development:

Background

Following the successful development of the initial Labour Care Web Application under the HI-MNCH Project (Aug–Sep 2025), additional requirements have emerged to expand the system to cover the full continuum of maternal and newborn care, improve usability, and make the application accessible offline on Android and iOS devices for midwives in the field.

Objective of the Extended Contract

To upgrade and expand the existing Labour Care App into a comprehensive Maternal and Newborn Care digital platform, and option to deliver fully functional Android and iOS versions using Capacitor or Flutter WebView for offline and on-device use

3. Scope of Work (New Modules & Upgrades)

A. Expansion System

Component	Description
Antenatal Care Module	Capture ANC visit data (history, risk assessment, vital signs, lab results, Education).
Postnatal Care Module	Monitor mother's health after delivery, breastfeeding, danger signs, and follow-ups appointments.
Child Care Module	Track newborn outcomes, immunization, danger signs, and feeding.
Lab Tests & Diagnostics	Record lab test results (e.g., Hb, urine protein, HIV, syphilis, etc.).

Analytics & Reports	Dashboard updates to include improved LCG report, ANC(integrated with lab test results), PNC, and newborn indicators, as well as patient overall report.
LCG New Views and Improvements	Introduce mobile-first carousel view for easier data entry during labour monitoring. And improve overall user experience for midwives based on feedbacks.
Multilingual Support (English/Myanmar)	Dual-language interface and data fields for all pages
User Feedback Integration	Implement feedback form and revision cycle mechanism based on midwives' input.

B. Mobile App Conversion (Android & iOS)

Deliverable	Description
Mobile Packaging via Capacitor / Flutter WebView	Wrap existing web app with native features.
Push Notifications	Enable Firebase Cloud Messaging for alerts and reminders.
Offline Data Sync	Local cache storage for low-connectivity environments.
App Icons, Splash Screen, & Branding	Design and integrate Jhpiego/HI-MNCH branding assets.
Play Store & App Store Deployment	Prepare, configure, and publish apps under official accounts.
Device Testing	QA testing on Android and iOS devices (phones + tablets).

4. Deliverables

- Updated Web Application with new modules and improved UI/UX
- Functional Android (.apk) and iOS (.ipa) applications
- Documentation (deployment guide + user manual)
- Source code and Firebase configuration updates
- Analytics dashboard integration
- App submission and testing reports
- Two Tutorial video for (ENG & Myanmar) on how to use the LCG app effectively

Requirements

Education Qualification

- Degree in Computer Sciences and other relevant qualifications will be considered based on the relevant working experiences.

Experiences and Skills

- Strong experience in Application Development
- Good Experience in Working and networking with INGOs
- Demonstrated expertise in digital health sector.
- Excellent communication and facilitation skills, with experience working in diverse stakeholder settings.
- Ability to Travel if required.

**ATTACHMENT B:
CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT**

THIS AGREEMENT is executed and delivered effective as of the **19th November 2025** , upon the following terms and conditions by and between Jhpiego Corporation, a Maryland corporation and an affiliate of the Johns Hopkins University, with offices at 118/A, Kokkai Yeik Tha Road, Bahan Township, Yangon, hereinafter called "**Jhpiego**," and **Zan Zan Tin Aye** with residence at **No.17, Nwe Ni Street, Ahlone Yangon, Myanmar** , hereinafter called "**Recipient**."

1. Purpose. Jhpiego wishes to explore a relationship with the Recipient in the course of which Jhpiego may disclose to Recipient certain confidential trade and business information proprietary to Jhpiego. Said relationship is, or may become, evidenced by a written agreement, and is conditioned upon the Recipient executing and delivering to Jhpiego this Agreement.

2. Definition. "Confidential Information" as used herein means any information, technical data or know-how (including, but not limited to, information relating to research, intellectual property, data, ideas, concepts, project design, products, patents or patent applications, software, services, developments, inventions, processes, engineering, marketing techniques, customers, pricing, internal procedures, business and marketing plans or strategies, finances, employees and business opportunities) disclosed by Jhpiego to Recipient either directly or indirectly in any form whatsoever (including, but not limited to, in writing, electronic, machine readable or other tangible or intangible form, orally or visually): (i) that has been marked as confidential; (ii) whose confidential nature has been made known by Jhpiego, orally or in writing, to Recipient; or (iii) that due to its character and nature a reasonable person under like circumstances would treat as confidential.

3. Exclusions. Confidential Information does not include information, technical data or know-how which: (i) is in the Recipient's possession at the time of its disclosure as shown by Recipient's files and records immediately prior to the date of disclosure; (ii) before or after it has been disclosed to Recipient, becomes part of the public knowledge or literature, not as a result of any action or inaction of Recipient; (iii) is disclosed to Recipient by a third party not in violation of any obligation of confidentiality; (iv) is independently developed by Recipient without reference to Confidential Information; or (v) is required by a valid order by a court of other governmental body or applicable law.

4. Use Limitations. Recipient agrees not to use the Confidential Information for [its/his/her] own use or for any purposes except those purposes now or hereafter expressly set forth in any writing describing and evidencing the aforesaid relationship between Jhpiego and the Recipient. Recipient shall not use the Confidential Information for purposes of unfair or improper competition. Recipient agrees not to copy, alter, modify, disassemble, reverse engineer or decompile in any manner any materials constituting Confidential Information without the prior written approval of Jhpiego, which may be withheld in the sole discretion of Jhpiego. Confidential information will be used for the purpose of pursuing (list solicitation name and number).

5. Non-Disclosure. Recipient agrees not to disclose the Confidential Information to any third party or entity whatsoever at any time without the prior written consent of Jhpiego. Notwithstanding the foregoing, Recipient may disclose the Confidential Information to the extent required by a valid order by a court or other government body or by applicable law; provided, however, that Recipient will use all reasonable efforts to notify Jhpiego of the obligation to make such disclosure in advance of the disclosure so that Jhpiego will have a reasonable opportunity to object to such disclosure. Recipient agrees that [it/he/she] shall treat the Confidential Information with the same degree of care as [it/he/she] accords to [its/his/her] own confidential information of a similar nature; provided that in no event shall Recipient exercise less than reasonable care to protect the Confidential Information. Recipient agrees to advise Jhpiego in writing promptly of any misappropriation or misuse by any person of such Confidential Information of which Recipient may become aware.

6. Return of Materials. Any materials or documents which are furnished to Recipient by or on behalf of Jhpiego, and all copies thereof, evidencing or otherwise relating to Confidential Information, at the earlier of Jhpiego's request for return of such materials, or the termination of the aforesaid relationship between Jhpiego and Recipient, at Jhpiego's option, will either be: (i) promptly returned to Jhpiego or (ii) destroyed by Recipient (with Recipient providing written certification of such destruction).

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- 7. No License.** The Confidential Information shall remain the sole property of Jhpiego. No license is granted hereby to Recipient under any patents, copyrights, work rights or other proprietary rights by the disclosure of any information hereunder, nor is any warranty made as to such information.
- 8. Remedies.** Recipient understands and agrees that Jhpiego may provide Confidential Information to Recipient in reliance upon the terms of this Agreement, and Recipient will be fully responsible to Jhpiego for any damages or harm caused to Jhpiego by a breach of this Agreement by Recipient or any person or entity purporting to act under or pursuant to any authority from Recipient, or on behalf of Recipient. Recipient acknowledges and agrees that a breach of any of [its/his/her] promises or agreements contained herein will result in irreparable injury to Jhpiego for which there will be no adequate remedy at law, and Jhpiego shall be entitled to apply for equitable relief, including injunction and specific performance, in the event of any breach or threatened breach or intended breach of this Agreement by Recipient or any other person or entity. Such remedies, however, shall not be deemed to be the exclusive remedies for any breach of this Agreement but shall be in addition to all other remedies available at law or in equity.
- 9. Attorneys' Fees; Jurisdiction/Venue.** In the event of any litigation or other legal proceedings between the parties, the prevailing party shall be entitled to reasonable attorneys' fees and all costs of proceedings incurred in enforcing this Agreement. The parties agree that all litigation or other legal proceedings arising under this Agreement shall be brought in the state courts of the State of Maryland and the United States District Courts located therein, and the parties shall submit to the exclusive personal and subject matter jurisdiction and venue of such courts. Service of process may be made by registered mail. This Agreement shall be deemed to have been made in, and in all respects its validity, interpretation and performance shall be governed by the laws of, the State of Maryland in the U.S.A.
- 10. Termination; Survival.** This Agreement shall govern all communications between the parties respecting Confidential Information which are made during the period from the date hereof to the date on which either party receives from the other written notice that subsequent communications shall not be so governed. Recipient's obligations under this Agreement with respect to Confidential Information it has previously received shall continue for a period of two (2) years after final proposal submission.
- 11. General.** This Agreement sets forth the entire understanding and agreement of the parties with respect to the subject matter hereof and supersedes all other oral or written representations and understandings. This Agreement may be amended, modified, released, discharged or supplemented in any manner only in writing signed by or on behalf of Recipient and an authorized representative of Jhpiego. If any provision of this Agreement is found by a proper authority to be unenforceable or invalid, no such unenforceability or invalidity shall affect the remainder of this Agreement, and such provision(s) shall be deemed to be removed from this Agreement while preserving as closely as possible the intent of the parties. Neither party will assign or transfer any rights or obligations under this Agreement (by operation of law, sale of assets, merger, reorganization or otherwise) without the prior written consent of the other party. This Agreement shall be binding upon the respective heirs, personal representatives, permitted successors and assigns of Jhpiego and the Recipient.
- 12. Identification of Jhpiego.** The Recipient shall not use the name of Jhpiego or any contraction or derivative thereof in any advertising, promotional or sales literature or other similar materials, in whatever form or medium, without the prior written approval of Jhpiego.
- 13. Supersession.** The terms of this Agreement supersede and nullify any and all previous agreements, correspondence, communications of any kind or nature, understandings and representations involving Confidential Information between Jhpiego and the Recipient. The Recipient agrees to examine and consider Confidential Information strictly in accordance with the terms of this Agreement.

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14. Notices. All notices or reports permitted or required under this Agreement shall be in writing, addressed and delivered to the receiving party at the address above written, and shall be by personal delivery, nationally recognized overnight courier service, facsimile transmission or by certified or registered mail, return receipt requested, and shall be deemed given upon the earlier of actual receipt or one (1) day after deposit with the courier service, receipt by sender of confirmation of electronic transmission or five (5) days after deposit in the mail.

IN WITNESS WHEREOF, each of the parties hereto has caused this Agreement to be executed and delivered by affixing hereunto his or her hand and seal, or by a duly authorized representative of such party, as the case may be, as of the date first above written.

Kyaw Hlaing

By : Dr. Kyaw Hlaing

Title : Country Program Manager, Jhpiego Myanmar



By : Zan Zan Tin Aye

Title : Consultant

Document Details

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